

DRISTI CASE FILE - FICTIONAL DOCUMENT PACK

IN THE COURT OF THE JUDICIAL FIRST CLASS MAGISTRATE-I, KOLLAM

C.C. / S.T. No. ST/412/2025 (arising out of CMP/1842/2025)
Complaint under section 138 of the Negotiable Instruments Act, 1881

APPLICATION FOR PRODUCTION OF DOCUMENTS

Original cheque return memo dated 17 April 2025

Sunil Varghese,
aged 42, 14 Example Lane, Asramam, Kollam 691002
... **Complainant**

Versus

Anand Traders, a sole proprietorship,
represented by its proprietor Arun Das, aged 39,
25 Sample Market Road, Chinnakada, Kollam 691001
... **Accused**

Case title	Sunil Varghese v. Anand Traders
Case numbers	CMP/1842/2025 ST/412/2025
Filing number	KL-DUMMY-001386-2025
Court	Judicial First Class Magistrate Court-I, Kollam
Filed by	Adv. Ramesh Menon, counsel for the complainant
Document sought	Original cheque return memo, 17 April 2025
Status	Returned on scrutiny

The complainant respectfully submits as follows:

- Cheque number 000184 dated 15 April 2025 for Rs. 4,50,000, drawn by the accused on Kerala Mercantile Bank (Fictional), Kollam Market Branch, was returned unpaid on 17 April 2025.
- The reason for the return, as recorded in the cheque return memo, is "Funds Insufficient". The dishonour of the cheque is a fact in issue in this complaint.
- The original of the said memo, together with the related dishonour records of the branch, is in the custody of the drawee bank and cannot be produced by the complainant.
- The production of the original is necessary to prove the dishonour and to enable PW-2 to be examined on the branch records.
- This application is filed bona fide and in the interest of a just decision of the case.

Prayer

It is therefore most respectfully prayed that this court may be pleased to direct Kerala Mercantile Bank (Fictional), Kollam Market Branch, to produce the original cheque return memo dated 17 April 2025 in respect of cheque number 000184 together with the related dishonour records, and pass such further orders as this court may deem fit and proper.

Place: Kollam Date: 8 August 2025

Adv. Ramesh Menon

Counsel for the complainant

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FICTIONAL DUMMY DOCUMENT